

23STCV03118 23STCV03118

County: los-angeles

Division: Civil Law and Motion

Department: 516

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Case Number: 23STCV03118 Hearing Date: September 3, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: August 28, 2026/September 3, 2026

Case Name: County of Los Angeles, v.

Nexus Is, Inc. et al.

Case

No.: 23STCV03118

Matter: Motion to Compel Further

Responses from Presidio to Request for Production (Res. 58384079068)

Motion to

Compel Compliance from Presidio to Request for Production (Res. 500798685677)

Motion to

Compel Further Responses from NTTA Defendants to Request for Production (Res. 896852021791)

Motion to

Compel Further Responses from NTTA Defendants to Special Interrogatories (Res.796435464225)

Moving

Party: Plaintiff County of Los

Angeles

Responding

Party: Defendant

Presidio Networked Solutions Group, LLC

Defendants

NTT America, Inc, Nexus IS Inc., NTT America Solutions, Inc. (f/k/a Dimension Data North America, Inc) collectively NTTA

Tentative

Ruling: Motions to Compel Further Responses from Presidio to Request for Production (Res. 58384079068)

Motions

to Compel Compliance from Presidio to Request for Production (Res. 500798685677)

Motions

to Compel Further Responses from NTTA Defendants to Request for Production (Res. 896852021791)

Motions

to Compel Further Responses from NTTA Defendants to Special Interrogatories (Res.796435464225)

See

below.

Plaintiff County

of Los Angeles ("Plaintiff") filed its action against Defendants Nexus Is, Inc., a Delaware corporation, Dimension Data North America, Inc., a New York corporation, NTT America Solutions, Inc., Presidio Networked Solutions Group, LLC, a Delaware limited liability company, Tel/Pro Voice & Data, Inc., a California corporation, Oasis Integration, Inc. formerly known as Tel/Pro Voice & Data, Inc., a California corporation, Thomas Shepos, an individual, Mohammad Tirmazi, an individual, Enrique Contreras, an individual, Melissa Contreras, TEQ Solutions, LLC, a California limited liability company, Syed Hussnain, Gregory Hanes, and Does 1 through 150. The Complaint alleges 13 causes of action for: (1) California Government Code sections 1090 and 1092; (2) declaratory relief; (3) violation of the California

False Claims Act, Government Code section 12651(A)(1); (4) violation of the California

False Claims Act, Government Code section 12651(A)(2); (5)
violation of the California

False Claims Act, Government Code section 12651(A)(3); (6)
violation of the California

False Claims Act, Government Code section 12651(A)(8); (7) violation
of the California

False Claims Act, Government Code section 12651(A)(8); (8)
breach of contract; (9) civil conspiracy to defraud; (10) unjust
enrichment/restitution; (11) breach of fiduciary duty; (12) aiding and abetting
breach of fiduciary duty; (13) violation of unfair competition law, Business
and Professions Code sections 17200, et seq.

Plaintiff

filed several motions to compel further responses and compliance to Request for
Production from Presidio and compel further responses and compliance to Request
for Production and to Special Interrogatories from NTTA defendants. Defendants oppose.

Plaintiff's

motion to compel further responses and compliance from Presidio was heard on
August 28, 2026 and continued to September 3, 2026.

Legal Standard

Discovery

requests may relate to any matter, not privileged, that is relevant to the
subject matter, if the matter either is itself admissible in evidence or
appears reasonably calculated to lead to the discovery of admissible
evidence. (Code Civ. Proc. § 2017.010; Kalaba v. Gray (2002)
95 Cal. App. 4th 1416, 1423.) "[I]f a propounding party is not satisfied with
the response served by a responding party, the propounding party may move the
court to compel further responses. (Code Civ. Proc., § 2030.300, subd.
(a).) The propounding party must demonstrate that the responses were
incomplete, inadequate or evasive, or that the responding party
asserted objections that are either without merit or too general. (Code Civ.
Proc. § 2030.300, subd. (a)(1)-(3); Sinaiko Healthcare
Consulting, Inc. v. Pacific Healthcare (2007) 148 Cal.App.4th 390, 403

(Sinaiko.) The burden to justify an objection to a discovery request is on the party asserting the objection. (See Fairmont Ins. Co. v. Superior Court (2000) 22 Cal.4th 245, 255.

Motions to compel further responses shall also include a “meet and confer” declaration. (Code Civ. Proc., § 2030.300, (b).) A meet and confer declaration shall state facts showing a reasonable and good faith attempt at informal resolution of each issue presented by the motion. (Code Civ. Proc. § 2016.040.) Motions to compel further responses also require a separate statement. (Cal. Rules of Court, rule 3.1345(a).)

Motions to compel further responses to request for production of documents pursuant to Code Civ. Proc. § 2031.010 “shall set forth specific facts showing good cause justifying the discovery sought by the demand”. (Code Civ. Proc. § 2031.310, subd. (b)(1).)

Analysis

Meet and
Confer

The parties engaged in extensive meet-and-confer efforts including participation in IDCs. Thus, the parties did meet and confer.

Request
for Production to Presidio

Plaintiff seeks further responses to RFP Nos. 13, 15, 16, 18, 20-22, 24, 25, 31-46, 48-54, 56-62, and 65-92. Plaintiff argues that Presidio’s responses are not Code-Compliant regarding representations of an inability to comply, that Presidio should remove date restriction of January 1, 2017 to January 1, 2020 on its responses, should expand its documentation search and production to include co-defendant and personal email domains, should expand the search terms, should produce responsive emails that involve “non-cabling” subcontractor work, should expand production of non-email electronic documents, and should produce documents without self-imposed limitations. In total there are 67 requests.

Plaintiff

further seeks an order that Presidio produce unredacted versions of approximately 2600 documents in its motion to compel compliance.

Underlying Issues

Plaintiff

asserts there are three primary underlying issues regarding the production: date restriction; self-imposed limitation, and inability to comply. The Court will address each separately as set forth in the motion and in the context of the burden of Plaintiff and Defendant generally. Motions to compel further responses pursuant to Code Civ. Proc. § 2031.010 “shall set forth specific facts showing good cause justifying the discovery sought by the demand”. (Code Civ. Proc. § 2031.310, subd. (b)(1).) The burden to justify an objection to a discovery request is on the party asserting the objection. (See Fairmont Ins. Co. v. Superior Court (2000) 22 Cal.4th 245, 255.

Date

Restriction

Plaintiff

asserts that as to 65 of the RFPs, Defendant improperly limited its document search and/or production to a restricted time frame of January 1, 2017 to January 1, 2020. Defendant argues that this window is reasonable in that Presidio's first contract with TelPro was in 2018 and had ceased any work by 2020. Plaintiff argues that there is good cause and relevancy to the subject matter that the time frame should not be so limited based on the individuals and entities relationships involved in the alleged bribery scheme. In fact, Presidio admitted that it did perform a “limited” search that predated 2017 and documents were discovered.

Generally,

the Court finds there is good cause to compel production of documents that would include the time period of January 1, 2013 to January 1, 2023.

Plaintiff

further asserts that Presidio improperly limited the domains in its email collection and limited the search terms through a unilaterally selection. Plaintiff does not establish what domains were being excluded and has not met its burden to show good cause regarding what is being compelled. As to the search terms, as argued by Plaintiff, there

are many other terms that can be used.

It is Plaintiff's burden to show good cause for utilization of search terms that were not included. To the extent that the search terms did not include the main individuals and entities alleged to be involved in the bribery scheme, these search terms should be included.

Limitations as to RFP's Nos. 13,
15,16, 25, 31-33 and 42-44

Plaintiff

argues that Presidio failed to fully comply by limiting these requests. It asserts that while the RFPs Nos, 13, 15, and 16 sought documents related to TESMAS, Work Orders and the WOS process, Presidio limited its responses to Work Orders only. Regarding the request for invoices (No. 25), Presidio restricted the time frame. With respect to Nos 31-33 and 42-44, Presidio limited production to certain work for the County. Generally, Plaintiff has met its burden to show that further responses are required.

Inability
to Comply

Code of

Civil Procedure sections 210-240 set forth the requirements for when a party indicates an inability to comply. "The party to whom a demand for inspection, copying, testing, or sampling has been directed shall respond separately to each item or category of item by any of the following:...(2) A representation that the party lacks the ability to comply with the demand for inspection, copying, testing, or sampling of a particular item or category of item.

(3) An objection to the particular demand for inspection, copying, testing, or sampling." (Code Civ. Proc. § 2031.210, subd. (a).)

"A representation of inability to comply with the particular demand for inspection, copying, testing, or sampling shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding

party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item." (Code Civ. Proc. § 2031.230.)

Generally, to the extent there has not been strict compliance, further responses would be required.

Motion to Compel Presidio's Compliance
with Responses

At issue are approximately 2600 documents that were produced with redactions. Plaintiff seeks to have each of these documents produced without redactions. Presidio argues the redactions are proper based on employee privacy rights and trade secrets. Plaintiff has the burden to show that there is good cause for the category of documents requested. Plaintiff has met that burden. The burden to justify an objection to a discovery request is on the party asserting the objection. (See *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

Presidio argues a procedural defect that the motion for compliance is essentially a motion to compel further responses noting that Presidio's responses were that it agreed to "produce non-privileged responsive documents". Based thereon, Presidio asserts that the failure of the filing of a Separate Statement is fatal to the motion. Presidio cites *Mills v U.S. Bank* (2008) 166 Cal. App. 4th 871, 893. As confirmed in *Mills*, denial of a motion to compel based on the failure to submit a Separate Statement is discretionary (Id at 893). Moreover, in lieu of a Separate Statement, the court may allow a party to submit a concise outline of the discovery request and each response. (Code Civ. Proc. § 2031.310, subd. (b)(3).)

Presidio objects based on "trade secret and privacy." Evidence Code § 1060 provides that the owner of a trade secret has a privilege to refuse to disclose the secret, and to prevent another from disclosing it, if the allowance of the privilege will not tend to conceal fraud or otherwise work injustice. A trade secret is defined as "information, including a formula, pattern, compilation, program, device, method, technique, or process that; (1) [D]erives independent economic value, actual or potential, from not being generally known to the public or to other persons who may obtain economic value from the disclosure or

use.” (Civil Code § 13426.1.)

Generally, the Court is not persuaded that there are trade secrets that require redaction. Initially, there appears to be good cause by the moving party to require Presidio to justify its objections. Further there is in place a protective order for that reason.

This preliminary finding also applies to the privacy objections for the salary and financial information related to the former employees allegedly to be involved in the bribery scheme. To address each specific redaction would require an analysis of each of the 2600 documents at issue. To address the justification of the redacted employee information would require a review of the 57 documents identified as being redacted as not all the types of information redacted would appear protected.

Request
for Production to NTTA Defendants

Plaintiff
seeks further responses to Nexus RFP Nos. 1-5, 7-8, 16-33, 34-44, 45-87, 89, 99-110, Dimension Data RFP Nos. 1-5, 7-8, 17-34, 34-44, 46-88, 90, 99-110, 117, and NTTA RFP Nos 1-5, 7-8, 17-34, 35-45, 46-88, 90, 99-110. In total there are 265 requests.

Although
characterized and filed as one motion, Plaintiffs has essentially filed three motions in one.

The Court will discuss the issues
regarding the multiple items that are the subject of the motion with the parties at the hearing.

Special Interrogatories to
NTTA Defendants

Plaintiff
seeks further responses to Nexus SROG Nos. 1-3, 5, 15, 18, 20-21, 23-26, 29-30, 32-36, 44-45, 47-48, 52-55, Dimension Data SROG Nos. 9, 12,14-15, 17-18, 20-21, 23-24, 26-27, 29-30, 30-39, 41-42, 46-49, 93, 96, 98-99, 101-102, 105, 107-108, 110-111, 113-114, 116-117, 119-120, 122-123, 125-126, 128-129, 136-143, and NTTA SROG Nos. 10, 13, 15-16, 18-19, 21-22, 24-25, 27-28, 30-31, 36-37, 39-40,

44-47, 49, 52, 54-55, 57-58, 60-61, 63-64, 66-67, 69-70, 73, 75-76, 78-79, and 83-86. In total there are 120 requests.

Although characterized and filed as one motion, Plaintiffs has essentially filed three motions in one.

The Court will discuss the issues regarding the multiple items that are the subject of the motion with the parties at the hearing.

Referral to Discovery Referee

Code of Civil Procedure section 639 provides:

“When the parties do not consent, the court may, upon the written motion of any party, or of its own motion, appoint a referee in the following cases pursuant to the provisions of subdivision (b) of Section 640:

....

(5) When the court in any pending action determines that it is necessary for the court to appoint a referee to hear and determine any and all discovery motions and disputes relevant to discovery in the action and to report findings and make a recommendation thereon.

...

(c) When a referee is appointed pursuant to paragraph (5) of subdivision (a), the order shall indicate whether the referee is being appointed for all discovery purposes in the action.

(d) All appointments of referees pursuant to this section shall be by written order and shall include the following:

....

(2) When the referee is appointed pursuant to paragraph (5) of subdivision (a), the exceptional circumstances requiring the reference, which must be specific to the circumstances of the particular case.

(3) The subject matter or matters included in the reference.

(4) The name, business address, and telephone number of the referee.

(5) The maximum hourly rate the referee may charge and, at the request of any party, the maximum number of hours for which the referee may charge. Upon the written application of any party or the referee, the court may, for good cause shown, modify the maximum number of hours subject to any findings as set forth in paragraph (6).

(6)

(A) Either a finding that no party has established an economic inability to pay a pro rata share of the referee's fee or a finding that one or more parties has established an economic inability to pay a pro rata share of the referee's fees and that another party has agreed voluntarily to pay that additional share of the referee's fee...."

Due to the volume of discovery documents required to be reviewed as it relates to these motions and additional anticipated motions, the Court finds that it is necessary to appoint a discovery referee per Code of Civil Procedure section 639. The Court will hear from the parties as to why a discovery referee should not be appointed at the hearing.